

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Butler	Team: Squad #05	CCRB Case #: 201501752	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/16/2015 12:38 PM	Location of Incident: Fountain Avenue and Blake Avenue	18 Mo. SOL 8/16/2016	Precinct: 75		
Date/Time CV Reported Thu, 03/12/2015 2:39 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 03/12/2015 2:39 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT2 Kenneth Anderson	01240	905697	075 DET
2. DT3 Abraham Arteaga	1337	929657	075 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT2 Kenneth Anderson	Abuse: Det. Kenneth Anderson stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Substantiated
B . DT3 Abraham Arteaga	Abuse: Det. Abraham Arteaga questioned § 87(2)(b) and § 87(2)(b)	B . Substantiated
C . DT3 Abraham Arteaga	Abuse: Det. Abraham Arteaga searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Exonerated
D . DT2 Kenneth Anderson	Discourtesy: Det. Kenneth Anderson spoke rudely to § 87(2)(b)	D . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the Call Processing System on March 12, 2015, on behalf of himself and his fiancée, § 87(2)(b) § 87(2)(b) videotaped part of the incident on his phone, and he provided this recording to the CCRB (Board Review 01 and 02).

On February 16, 2015, at approximately 12:38 p.m., Det. Kenneth Anderson and Det. Abraham Arteaga of the 75th Precinct Detective Squad stopped § 87(2)(b) as he drove his car at Fountain Avenue and Blake Avenue in Brooklyn while § 87(2)(b) sat in the front passenger's seat (**Allegation A**). Det. Arteaga asked if there were any weapons inside of the vehicle, and the officers instructed § 87(2)(b) and § 87(2)(b) to exit the vehicle (**Allegation B**). Det. Arteaga then reached into the vehicle and removed a small knife from a compartment near § 87(2)(b)'s car radio (**Allegation C**). § 87(2)(b) and the officers moved to the back of the vehicle at which time Det. Anderson referred to § 87(2)(b) as an "asshole" and asked § 87(2)(b) "Did I fucking throw you down on the ground?" (**Allegation D**). The officers allowed § 87(2)(b) and § 87(2)(b) to leave without issuing them summonses or arresting them (Board Review 01-04).

This case was assigned to Inv. Cassandra Fendley on March 13, 2015, and it was reassigned to Inv. John Butler on July 27, 2015, upon Inv. Fendley's departure from the agency.

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation § 87(2)(b). A notice of claim request was submitted on June 10, 2015, and it will be added to the case file upon its receipt at the agency. § 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(c)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 07).
- Det. Anderson has been a member of the NYPD for 21 years and has been the subject of four prior complaints involving six allegations, none of which were substantiated. § 87(2)(g).
- Det. Arteaga has been a member of the NYPD for 13 years and has been the subject of five prior complaints involving ten allegations, none of which were substantiated. § 87(2)(g).

Findings and Recommendations

Allegation A –Abuse of Authority: Det. Kenneth Anderson stopped the car in which

§ 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that Det. Anderson stopped the car driven by § 87(2)(b) and occupied by § 87(2)(b) (Board Review 03-06).

§ 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) was driving northbound on Fountain Avenue when they observed Det. Anderson and Det. Arteaga's unmarked police vehicle slow down and stop in the middle of the street ahead of them (Board Review 03 and 04). Det. Anderson confirmed that he was driving slowly at this time but denied stopping the car completely (Board Review 05). § 87(2)(b) did not realize that this vehicle was a police car upon seeing it stop in the middle of the street. There were two traffic lanes on the street, but

04-06). Det. Anderson and § 87(2)(b) added that Det. Anderson asked for § 87(2)(b)'s license and registration several times before § 87(2)(b) provided them to him (Board Review 04 and 05).

All parties and the video footage of the incident were consistent in that Det. Anderson and § 87(2)(b) argued with raised voices for a few minutes about the reason for the stop and about why § 87(2)(b) provided § 87(2)(b) PBA card to the Det. Anderson (Board Review 01-06). After this argument, § 87(2)(b) stated that Det. Anderson instructed him and § 87(2)(b) to exit the vehicle and walk to the back of the car (Board Review 03). At this time, Det. Anderson allegedly questioned § 87(2)(b) about whether there were any weapons inside of the vehicle (Board Review 05). However, the video footage of the incident and § 87(2)(b)'s testimony were consistent in that Det. Arteaga asked § 87(2)(b) and § 87(2)(b) if they possessed any weapons while they were inside of the vehicle and before the officers instructed them to exit the vehicle (Board Review 01, 02, and 04).

Det. Arteaga stated that he observed a small knife in the center console of the vehicle through the open passenger's side window while Det. Anderson and § 87(2)(b) argued (Board Review 06). Det. Anderson did not see the knife (Board Review 05). At this point, Det. Arteaga asked Det. Anderson to remove § 87(2)(b) and § 87(2)(b) from the vehicle (Board Review 06). After Det. Anderson escorted the civilians to the back of the vehicle, Det. Arteaga retrieved the knife from the car (Discussed in **Allegation C**). Det. Arteaga did not recall whether he or Det. Anderson asked § 87(2)(b) or § 87(2)(b) if they possessed any weapons at any point during the incident (Board Review 06). Det. Anderson denied asking this question, and he did not recall whether Det. Arteaga did so (Board Review 05-06).

Upon watching the video footage of the incident, Det. Anderson identified Det. Arteaga as the officer who questioned the civilians about weapons, but he did not hear this question on the date of the incident. Det. Arteaga also watched the video, but he could not determine who asked this question. The video also did not refresh his recollection of the circumstances prompting this question.

According to *People v. Hollman*, an officer cannot ask accusatory questions without founded suspicion of criminality (Board Review 09).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **Substantiated**.

Allegation C –Det. Abraham Arteaga searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that Det. Arteaga searched § 87(2)(b)'s vehicle, and it is undisputed that this search only involved him reaching into the center console of the car to remove a small knife. It is undisputed that this knife was inside of the vehicle, but it is in dispute as to whether this knife was in plain view (Board Review 03-06).

§ 87(2)(b) acknowledged that he kept a box cutter inside of his vehicle for his use at work (Board Review 03). § 87(2)(b) stated that the box cutter was located in a compartment near the center console of the car behind the car radio. § 87(2)(b) stated that the box cutter folds open, is three inches long in its entirety, and that the blade is approximately one inch long. § 87(2)(b) also stated that the blade of the knife appeared to be one inch long and that § 87(2)(b) used it for work (Board Review 04). As § 87(2)(b) and § 87(2)(b) exited the vehicle, they observed Det. Arteaga reach into the vehicle through the passenger's side window and retrieve the box cutter. All parties, including the officers, were consistent in that Det. Arteaga reached directly to the location of the knife and that he did not search any other area of the vehicle (Board Review 03-06).

Det. Anderson did not see the knife but was informed by Det. Arteaga that "something" was inside of the center console of the car (Board Review 05). Det. Arteaga's description of the knife was consistent with § 87(2)(b)'s description, but Det. Arteaga could not see the knife blade because it was folded up (Board Review 06). Det. Arteaga believed that the knife might have been a gravity knife because he had made previous arrests in which similar knives had loosened screws to allow for the knife to flip open like a gravity knife. Det. Arteaga searched the vehicle in order to retrieve this knife. Upon retrieving the knife, Det. Arteaga realized that the knife opened manually and was not a gravity knife.

According to *People v. Smith*, a vehicle may be searched without a warrant if officers have probable cause to believe that the vehicle contains contraband, evidence of a crime, a weapon or some means of escape (Board Review 10).

§ 87(2)(g)

it is recommended that **Allegation C** be closed as **Exonerated**.

Allegation D – Det. Kenneth Anderson spoke rudely to § 87(2)(b)

It is undisputed that Det. Anderson used profanity towards § 87(2)(b) (Board Review 01-06).

After explaining the he used the knife for work, § 87(2)(b) attempted to show Det. Anderson his other work tools, which were located in the trunk of his car (Board Review 03). Upon opening the trunk, Det. Anderson slammed it shut. § 87(2)(b) and Det. Anderson then argued about why the officers stopped him and whether the reason for the stop was solely because § 87(2)(b) honked at the officers. During this argument, Det. Anderson allegedly called § 87(2)(b) an "asshole." § 87(2)(b) confirmed that this argument occurred, and she confirmed that Det. Anderson referred to § 87(2)(b) as an asshole at some point during the conversation (Board Review 04). § 87(2)(b) did not recall whether Det. Anderson used any other profanity during the incident. The officers then allowed § 87(2)(b) and § 87(2)(b) to leave without

	Signature	Print	Date
Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date